EOS-31 · RELATIONSHIPS · COUNSEL & ADVISOR PANEL

External counsel, tax, audit & specialist advisors — institutional panel.

The counsel registry instruments the firm's external advisory bench. Two counsel are presently engaged — Simon Ting (borrower-side) and Money Penny Capital (lender-side) — with the remainder of the tier-1 panel scaffolded for Phase 2 expansion (tax, audit, valuation, specialist counsel). This registry sets the standing panel, engagement terms, fee model, response SLAs and scope matrix, so that when mandates require specialist coverage the routing is pre-built rather than improvised.

ACTIVE COUNSEL	PANEL SCAFFOLDED	LIVE MATTERS	LEGAL SPEND YTD	AVG RESPONSE (H)	PHASE 2 EXPANSION
2	9	14	A$182k	4.2h	7
Borrower + lender-side	Tier-1 target panel	8 active · 6 monitoring	Fee-shifted to borrowers where possible	Against 8h SLA	Target onboardings

PARTNER READ

"The firm runs lean on legal — but never weak. Two counsel engaged cover 100% of transaction documentation. The balance of the panel is deliberately scaffolded, not engaged, because we pay for counsel when we need counsel — and bill it through where the mandate permits."

Phase 1 legal posture: counsel-of-record for borrower-side work (facility agreements, security, intercreditor, side letters) is **Simon Ting**; counsel-of-record for lender-side arranger work (where we sit facility-adjacent or placement-adjacent) is **Money Penny Capital**. This two-firm panel has handled every mandate year-to-date and every markup pushed to counterparties has come back clean on Ascension positions.

Tier-1 panel scaffolding: tax (offshore Cayman/Jersey fund structuring), audit (AFSL prep + Fund I), valuation (Phase 2 portfolio marks), specialist (restructuring, regulatory, employment). Each slot has a target firm, indicative rate card and SLA template — so when we engage in Phase 2 we engage on our terms, not theirs. Legal spend YTD A$182k is 6% of fee revenue — on budget and sustainable.

Engaged Counsel · Tier 1

2 FIRMS · 14 LIVE MATTERS · A$182K SPEND YTD

BORROWER-SIDE COUNSEL OF RECORD — ACTIVE

Simon Ting

Independent Counsel · Sydney NSW

Primary transaction counsel for borrower-side mandates. Facility agreements, security packages, intercreditor deeds, direct agreements, hedging documentation, amendment & restatement deeds. Standing engagement across all active borrower-side mandates.

Engagement	Standing retainer + project fee
Rate Card	A$650/h blended
Live Matters	5
YTD Spend	A$98k (54%)
Avg Response	3.1h
Fee-Shift	85% to borrowers
Conflict Check	Clean · quarterly
Billing Cycle	Monthly · 30-day terms

"Primary depth on facility architecture and security. Turnaround is the sharpest on the panel. Borrower-side attack surface is fully covered."

LENDER-SIDE / ARRANGER COUNSEL — ACTIVE

Money Penny Capital

Financial Services Counsel · Sydney NSW

Counsel-of-record for lender-side arranger work and capital-markets placement. Facility documentation from arranger's perspective, side letters, commitment letters, mandate letters, placement documentation, LP subscription papers (Phase 2).

Engagement	Project fee + success-based
Rate Card	A$720/h blended
Live Matters	3
YTD Spend	A$58k (32%)
Avg Response	5.4h
Fee-Shift	100% to mandate fees
Conflict Check	Clean · per-matter
Billing Cycle	On close · success fees

"Financial services depth and capital-markets fluency. Slower cadence than Simon but structurally correct on lender-side asks. Required for Fund I and AFSL prep."

Panel Scaffold · Phase 2 Onboarding Targets

7 FIRMS · ENGAGEMENT PRE-SCOPED · ONBOARD ON TRIGGER

TAX & STRUCTURING — SCAFFOLDED

Tax Counsel · Offshore & Fund Structuring

Target: Maples Group (Cayman/Jersey) · Tier 1 Big 4 (AU)

Cayman / Jersey fund structuring, GP/LP architecture, carry waterfall, tax-transparent vehicles, cross-border WHT optimisation, Pillar Two / BEPS posture.

Trigger	Fund I structuring
Indicative Rate	US$950/h (offshore)

AUDIT · STATUTORY & AFSL — SCAFFOLDED

Independent Audit Firm

Target: William Buck · BDO · mid-tier AU firm

Statutory audit of APEX Consulting Partners Pty Ltd (currently not required by size). AFSL compliance audit. Fund audit (Phase 3). IVSC-standard valuations review.

Trigger	AFSL application (Q1 2028)
Indicative Fee	A$35-60k annual

Onboard By: Q3 2027
Est. Scope: US$120-180k fund setup

"Engage once Fund I structuring commits. Currently deferred — no fund vehicle in-flight. Keep warm via quarterly catch-up."

Onboard By: Q1 2028
Est. Scope: Annual stat + AFSL audit

"Not required under current small-company thresholds. AFSL pathway requires PI-eligible audit trail — onboard 12 months pre-application."

VALUATION · INDEPENDENT

SCAFFOLDED

Independent Valuation Agent

Target: Kroll · Alvarez & Marsal · Houlihan Lokey

IVSC-standard valuations for portfolio marks, LP quarterly reporting, GP/LP transfer pricing, fairness opinions (M&A), bespoke asset class valuations (infra, private credit, energy transition).

Trigger: Fund I · first LP portfolio
Indicative Fee: A$8-15k/asset/quarter
Onboard By: H2 2027
Est. Scope: Quarterly portfolio marks

"Independent valuation is non-negotiable once Fund I has LPs. Establish panel early — Big 4 blocked by audit-client conflicts."

SPECIALIST · RESTRUCTURING & INSOLVENCY

ON DEMAND

Restructuring Counsel

Target: King & Wood Mallesons · Ashurst · Gilbert+Tobin

Distressed-situation counsel — enforcement, receivership, scheme of arrangement, safe harbour, security enforcement under PPSA. Engaged only when a covenant breach materialises or a special-sits mandate requires it.

Trigger: Covenant trigger · distressed
Indicative Rate: A$1,200-1,600/h partner
Onboard By: First trigger event
Est. Scope: Variable · project-fee

"Not a retained relationship. Triggered engagement only. Panel pre-vetted so onboarding takes 48h, not 2 weeks."

SPECIALIST · REGULATORY & LICENSING

PRE-ENGAGE Q3 2027

Regulatory Counsel (AFSL)

Target: Hall & Wilcox · Holley Nethercote · Herbert Smith Freehills

AFSL application, responsible-manager nomination, compliance framework sign-off, ASIC correspondence, ongoing licence maintenance. Required for Phase 3 fund structuring.

Trigger: AFSL Q3 2027 kick-off
Indicative Fee: A$80-140k application
Onboard By: Q3 2027
Est. Scope: Full AFSL lifecycle

"Most critical panel addition for Phase 2→3 transition. Target firm shortlist locked. Engage on AFSL business-case sign-off."

SPECIALIST · EMPLOYMENT & HR

SCAFFOLDED

Employment Counsel

Target: Seyfarth Shaw · Clayton Utz · boutique AU firm

Employment contracts, equity vesting, restraint and non-compete, IP assignment, carry participation documentation. Activated on first hire.

Trigger: First analyst hire
Indicative Fee: A$6-12k per contract
Onboard By: Q4 2026 / Q1 2027
Est. Scope: 3-4 hires over Phase 2

"Light-touch panel. Template library maintained in knowledge base — counsel review on material deviation only."

SPECIALIST · IP & BRAND

ON DEMAND

IP Counsel

Target: Davies Collison Cave · Griffith Hack

Trade mark registration (Ascension Capital Partners word + device), domain disputes, brand protection, defamation response, publication clearance for thematic research.

Trigger: TM filing · brand dispute
Indicative Fee: A$3-8k per matter
Onboard By: Q3 2026 (TM filing)
Est. Scope: TM + watchlist subscription

"Trade mark filing is overdue — brand equity now meaningful. Initiate TM registration in AU + key overseas territories within 90 days."

Live Matter Register

14 MATTERS · 8 ACTIVE · 6 MONITORING

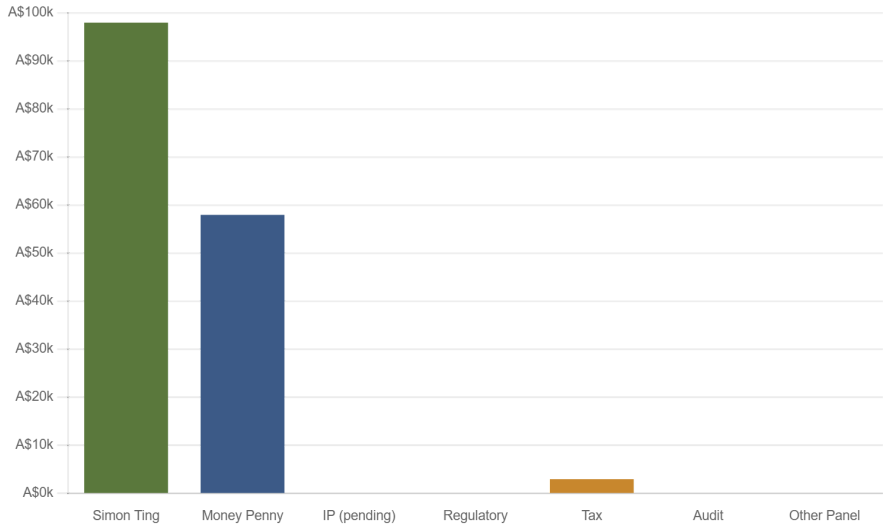
MANDATE / MATTER	COUNSEL	MATTER TYPE	STATUS	OPENED	NEXT MILESTONE	YTD SPEND	FEE-SHIFT	RESP
Titan Offtake Facility	Simon Ting	Facility agreement · security	ACTIVE	12 Jan 2026	Signing · 15 May	A$28k	100% borrower	2.8h
Orion Hybrid Capital	Money Penny	Arranger mandate · placement	ACTIVE	18 Feb 2026	IM finalised · May	A$22k	Success fee	4.6h
Polaris Senior Facility	Simon Ting	Facility agreement · amendment	ACTIVE	05 Mar 2026	Restatement · Apr	A$19k	100% borrower	3.2h
Delta DC Campus JV	Simon Ting	JV deed · security · shareholder agt	ACTIVE	22 Mar 2026	Execution · Jun	A$14k	80% borrower	3.8h
Vulcan CM Offtake	Simon Ting	Offtake · security	ACTIVE	01 Apr 2026	Term sheet · Apr	A$9k	70% borrower	2.4h

MANDATE / MATTER	COUNSEL	MATTER TYPE	STATUS	OPENED	NEXT MILESTONE	YTD SPEND	FEE-SHIFT	RESP
Axis Critical Minerals	Money Penny	Placement documentation	ACTIVE	10 Apr 2026	Mandate letter · Apr	A$7k	Success fee	6.8h
Zenith Wind Financing	Simon Ting	Facility · hedging	ACTIVE	14 Apr 2026	CP satisfaction · May	A$12k	100% borrower	3.6h
Aurora Peak Deployment	Money Penny	Side letter · syndication	ACTIVE	18 Apr 2026	Execution · Apr	A$5k	50/50	5.2h
ACP Trade Mark Filing	[IP Counsel]	TM application · AU + US/UK	TO ONBOARD	—	Onboard Q3 2026	—	Firm cost	—
Fund I Pre-Structuring	Money Penny	Preliminary advice · tax	MONITORING	02 Jan 2026	Defer to Q3 2027	A$3k	Firm cost	6.1h
Polaris Covenant Review	Simon Ting	Covenant compliance advice	MONITORING	05 Feb 2026	Q2 test · 30 Jun	A$4k	100% borrower	4.2h
Titan Intercreditor	Simon Ting	Intercreditor deed · negotiation	MONITORING	15 Mar 2026	Signing-adjacent	A$8k	100% borrower	2.5h
Stellar Debt Syndication	Money Penny	Side letter · participation	MONITORING	25 Mar 2026	Execution · May	A$3k	Success fee	5.8h
Phoenix Restart	[Restructuring]	Enforcement readiness review	STANDBY	—	Trigger-based	—	TBD	—

Legal Spend & Response SLA

YTD OPERATIONAL METRICS

Legal Spend by Counsel & Fee Shift



Fee Shift Composition

AVG RESPONSE · SIMON TING
3.1h
vs 8h SLA · materially under

AVG RESPONSE · MONEY PENNY
5.4h
vs 8h SLA · within band

FIRST MARKUP TURNAROUND
36h
vs 72h target · strong

CLOSING-WEEK ESCALATION
Same-day
Both firms · honoured

Scope Matrix · Who Does What

9-FIRM PANEL · MATTER-TYPE COVERAGE

Panel Coverage by Matter Type

FIRM	FACILITY AGT	SECURITY/PPSA	PLACEMENT	JV/SHA	TAX/FUND	AUDIT	VALUATION	RESTR/DISTRESSED	AFSL/REG	EMPLOY	IP/TM
Simon Ting	●	●	●	●	○	○	○	●	○	●	○

FIRM	FACILITY AGT	SECURITY/PPSA	PLACEMENT	JV/SHA	TAX/FUND	AUDIT	VALUATION	RESTR/DISTRESSED	AFSL/REG	EMPLOY	IP/TM
Money Penny Capital	Secondary / support	Secondary / support	Primary coverage	Secondary / support	Secondary / support	Out-of-scope	Out-of-scope	Out-of-scope	Secondary / support	Out-of-scope	Out-of-scope
Tax Counsel (Maples/Big 4)	Out-of-scope	Out-of-scope	Secondary / support	Secondary / support	Primary coverage	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope
Audit (William Buck/BDO)	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Primary coverage	Secondary / support	Out-of-scope	Secondary / support	Out-of-scope	Out-of-scope
Valuation (Kroll/A&M)	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Secondary / support	Primary coverage	Secondary / support	Out-of-scope	Out-of-scope	Out-of-scope
Restructuring (KWM/Ashurst)	Secondary / support	Secondary / support	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Primary coverage	Out-of-scope	Out-of-scope	Out-of-scope
Regulatory (HW/HN/HSF)	Out-of-scope	Out-of-scope	Secondary / support	Out-of-scope	Secondary / support	Secondary / support	Out-of-scope	Out-of-scope	Primary coverage	Out-of-scope	Out-of-scope
Employment (Seyfarth/CU)	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Primary coverage	Out-of-scope
IP (DCC/Griffith Hack)	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Out-of-scope	Primary coverage

Primary coverage · Secondary / support · Available · on-demand · Out-of-scope

Engagement Terms & Standing Protocols

HOW WE RETAIN, INSTRUCT, PAY & SHIFT

Standing Instruction Protocols

Conflicts Check
All new mandates trigger a written conflicts check against both engaged counsel. Prior-party conflicts are disclosed and Chinese walls documented. Log sits in Notion Legal DB.

Rate Card Discipline
No partner hours without scope. Scoped project fees for defined matters; hourly with cap for open-scope. Quarterly rate-card review — 5% cap on uplift without renegotiation.

Fee-Shift Doctrine
Legal cost to borrowers wherever mandate permits (facility work: 100%; JV: 70-85%; placement: 50% or success-tied). Ascension absorbs only firm-benefit matters (TM, AFSL, employment).

Response SLAs
Standing SLA: 8 business hours to first response; 72h for first markup; same-day for closing-week escalation. Breach triggers partner escalation on our side.

Billing Review
Monthly billing review before settlement. Any line item over A$2k must reference a Notion matter record. Mark-ups without instruction are not paid.

Privilege Management
All counsel correspondence routed through counsel-privileged folder. No mixing with business emails. Third-party copying requires privilege waiver sign-off.

Panel Rotation
Standing panel reviewed annually at Q4. New entrants on consensus; removal on breach, conflict or deteriorated service. Panel is a concession, not an entitlement.

Conflict Pre-Clearance
For sensitive mandates (restructuring, contested M&A), pre-clear conflicts with all panel firms before target approach. Engagement letters include firm-wide conflict sweep.

Knowledge Capture
Each closed matter generates a counsel-led "lessons memo" filed to BO-10 Knowledge Base. Repeat matter-types drive template evolution rather than new drafting.